



Shingi <samudzi@gmail.com>

Scheduling Mediation // Case No: 25BA-FC01732 McIntosh v Samudzi

lingo markelandlingolaw.com <lingo@markelandlingolaw.com>

Fri, Apr 10, 2026 at 8:15 AM

To: Shingi <samudzi@gmail.com>, tana@bennerfamilylaw.com

Cc: Claire Whitney <assistant@bennerfamilylaw.com>, amy@amymarkel.onmicrosoft.com

Dear All,

Today's e-mail is the first e-mail I am aware of regarding a potential mediation. My practice is to initiate a scheduling process once I am notified of an appointment by either the court or counsel. I'm unclear as to whether you are seeking mediation with myself or with Ms. Markel, my business partner. At any rate, if you have concluded you aren't happy with this office, I believe we will both be fine declining to be assigned as your mediator.

Anna

On 04/10/2026 1:49 AM CDT Shingi <samudzi@gmail.com> wrote:

Ms. Benner, Ms. Lingo, Ms. Markel,

Each of you has read my email multiple times, and apparently, none of you felt even basic acknowledgement was necessary. This gives me a preview of how you intended to use mediation in the first place.

I went ahead and filed a motion of objection. While I am open to mediation and settlement, we won't proceed before fully reviewing the documentary evidence and completed interrogatories. I believe you have until May 6.

Ms. Benner, if I hear nothing from your office by EOB April 16, I will file the calendar motion so that we can address the case's most substantive custody concerns in a manner that respects everyone's time.

On Tue, Mar 31, 2026 at 7:20 PM Shingi <samudzi@gmail.com> wrote:

Ms. Benner,

I am writing regarding your client's outreach to schedule mediation with Anna Lingo.

I object to the selection of Ms. Lingo as mediator and do not consent to proceeding with mediation through her.

Prior to the filing of this matter I was directed by your client to contact Amy Markel, who is affiliated with the same firm as Ms. Lingo. I made a direct inquiry that I can confirm was read 3 times via read receipt but not responded to, and mediation has now been advanced through a partner at that same firm without my agreement. This creates, at minimum, a reasonable appearance of partiality.

In addition, given the nature of the issues already placed before the Court—including documented concerns affecting child welfare and disputed financial disclosures—mediation at this stage is premature. These matters require appropriate discovery and evidentiary development before they can be meaningfully addressed in a settlement context.

I am willing to participate in mediation at an appropriate time and with a mutually agreed neutral. At present, I request that mediation scheduling be deferred and that we instead proceed with full discovery.

Please confirm that mediation scheduling with Ms. Lingo will be paused pending resolution of these issues.

Regards,

On Tue, Mar 31, 2026 at 5:03 PM Amber McIntosh <armdivorce@gmail.com> wrote:

Hi Anna,

Reaching out to schedule a mediation session regarding our case in Boone County.

Please let us know your availability and any intake forms we need to complete beforehand.

cc: Shingai Samudzi

Best regards,

Amber McIntosh

415-450-1320

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Shingi Samudzi

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